

Sr. No.	Date of order	Order with signature of Judge, and that of parties or counsel, where necessary.
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On Court's query, learned Deputy Prosecutor General under instructions of Investigating Officer (present before the Court) and after himself going through the available record apprises that on 12.06.2024 Noman-ul-Hassan (brother of deceased of the case namely Fiza Batool) got recorded his statement that on 06.05.2024 his sister namely Fiza Batool went from home after becoming angry and on the second day contact was established with her, who told that she has come to Lahore and contracted marriage. On 12.05.2024 & 13.05.2024, she made phone calls and asked for sending money and they sent Rs.4,000/- & Rs.2,500/-

through easypaisa on cell phone No. 0302-3775778 whereas on 13.05.2024 her mobile phone became off. On 22.05.2024 on the cell phone of his mother and sister, SMS message was received that she was alright, however after two days, call was received from Police Station Sharqpur that dead body of their daughter is lying under Sharqpur Motorway Interchange which was identified on the basis of finger print as their daughter; he expressed his belief that some unknown person or persons while committing rape have committed the murder of his sister. Learned Deputy Prosecutor General further apprises that on 18.06.2024, Noman-ul-Hassan (mentioned above) submitted an application while mentioning therein that now he has come to know through Mohtaj-ur-Rehman and Muhammad Iqbal that they had seen three persons alongwith his sister at the shrine of Hazrat Data Ganj Bakhsh (R.A.), Lahore and they also told features of said three unknown persons, however, facial features of three persons were not told by both of them; further adds that Imtiaz Hussain (petitioner in Crl. Misc. No.11391-B/2025), Ashiq Hussain & Shoaib (co-accused) were arrested under section 54 Cr.P.C. on 05.08.2024, sent to jail where they were identified by Mohtaj-ur-Rehman and Muhammad Iqbal on 03.09.2024 and thereafter identity card of the deceased lady was recovered from Imtiaz Hussain (petitioner in Crl. Misc. No.11391-B/2025), mobile phone of deceased was recovered from Shoaib whereas vehicle/car used in the occurrence was recovered from Ashiq Hussain (co-accused); further apprises that on 06.09.2024 Ashiq Hussain (co-accused) during investigation stated that Mst. Mariyam was with them, when they were coming from Rayimyar Khan to Lahore, he (Ashiq Hussain) alongwith Mariyam while putting “dopatta” دوپٹہ around the neck of Fiza Batool threw her from running vehicle/car and on this statement of Ashiq Hussain, Mst. Mariyam (petitioner in Crl. Misc. No.9980-B/2025) was arrested on 24.09.2024, however nothing was recovered from her and she was sent to jail on the same day; further apprises that aforementioned “dopatta” دوپٹہ was not recovered during investigation of the case.

Though other features of the accused were disclosed yet facial features of any accused were not disclosed by Mohtaj-ur-Rehman and Muhammad Iqbal witnesses, therefore, evidentiary value of the

identification of Imtiaz Hussain (petitioner) through identification parade would be seen during trial of the case.

So far as case of Mst. Mariyam (petitioner in Crl. Misc. No.9980-B/2025) is concerned, suffice it to say that her name was disclosed by co-accused namely Ashiq Hussain on 06.09.2024 that she was accompanying them when they were coming from Rahimyar Khan and he alongwith Mst. Mariyam while putting “dopatta” دوپٹہ around the neck of Fiza Batool threw her from running vehicle/car, however neither any “dopatta” دوپٹہ has been recovered nor any other piece of evidence in corroboration of said statement of the co-accused is available on the record. It has been apprised by learned Deputy Prosecutor General under instructions of the Investigating Officer of the case that after thorough investigation it has been concluded by the Investigating Agency that Mst. Mariyam was merely sitting on the front seat of the car and she neither put “dopatta” دوپٹہ around the neck of Fiza Batool (deceased of the case) nor threw her from the car.

Learned Deputy Prosecutor General further submits that time between injuries and death was not given by the Medical Officer as per post-mortem examination report and furthermore after receipt of reports from the experts, it has been finally opined by the Medical Officer that cause of death in this case is uncertain and manner of death is undetermined. When all aforementioned circumstances are taken into consideration in totality, then case of the prosecution against both the petitioners i.e. Mst. Mariyam and Imtiaz Hussain, at present, requires further probe/inquiry and falls within the purview of sub-section 2 of Section 497 Cr.P.C.

Petitioner Imtiaz Hussain was arrested in this case on 05.08.2024 whereas Mst. Mariyam was arrested on 24.09.2024, sent to jail where they are confined, and in aforementioned circumstances, no useful purpose would be served to the case of prosecution by keeping them in jail for an indefinite period and it is trite law that bail cannot be withheld as advance punishment. Even otherwise bail is a procedural relief i.e. mere change of custody from State to surety and has no bearing on ultimate fate of the case.

Liberty of a person is a precious right which has been guaranteed by the Constitution of Islamic Republic of Pakistan, 1973. By now it is also well settled that it is better to err in granting bail than to err in refusal because ultimate conviction and sentence can repair the wrong resulted by a mistaken relief of bail; in this regard, case of **“CHAIRMAN, NATIONAL ACCOUNTABILITY BUREAU through P.G., NAB versus NISAR AHMED PATHAN and others”** (PLD 2022 Supreme Court 475) can be safely referred and its relevant portion from Page No(s).480-481 is reproduced: -

“To err in granting bail is better than to err in declining; for the ultimate conviction and sentence of a guilty person can repair the wrong caused by a mistaken relief of bail, but no satisfactory reparation can be offered to an innocent person on his acquittal for his unjustified imprisonment during the trial.”

3. In view of above, both aforementioned petitions for bail filed by the petitioners i.e. Crl. Misc. No.9980-B/2025 filed by Mst. Mariyam and Crl. Misc. No.11391-B/2025 filed by Imtiaz Hussain are **accepted/allowed** and they are admitted to post-arrest bail in the case subject to their furnishing bail bonds in the sum of Rs.5,00,000/- (Rupees five hundred thousand only) each with one surety each in the like amount to the satisfaction of trial court.

4. It goes without saying that observations mentioned above are just tentative in nature, strictly confined to the disposal of instant petitions and will have no bearing upon trial of the case, which will be decided on its own merits by the trial court expeditiously. Needless to add that if petitioners or any other person acting on their behalf will create any hurdle in the way of conclusion of trial, then complainant as well as the State would be at liberty to move for recalling of this order.

(Farooq Haider)
Judge

APPROVED FOR REPORTING.

(Farooq Haider)
Judge